

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jesse Maneiro	Team: Team # 2	CCRB Case #: 201308721	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 08/12/2013 4:56 PM	Location of Incident: § 87(2)(b) [REDACTED] § 87(2)(b) [REDACTED]	Precinct: 18	18 Mo. SOL 2/12/2015	EO SOL 2/12/2015	
Date/Time CV Reported Wed, 09/18/2013 10:58 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 09/18/2013 8:30 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Brown	29245	950110	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Romano	09474	951172	MTN PCT
2. POM Peter Cassidy	00623	948756	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Jason Brown	Force: PO Jason Brown used physical force against § 87(2)(b) [REDACTED] at § 87(2)(b) [REDACTED] in Manhattan.	[REDACTED]
B.POM Jason Brown	Off. Language: PO Jason Brown made remarks to § 87(2)(b) [REDACTED] based upon race at § 87(2)(b) [REDACTED] in Manhattan.	[REDACTED]
C.POM Jason Brown	Abuse: PO Jason Brown threatened § 87(2)(b) [REDACTED] with the use of force at § 87(2)(b) [REDACTED] in Manhattan.	[REDACTED]

Case Summary

On September 18, 2013, § 87(2)(b) a Spanish speaker, filed a complaint with the CCRB in person. On August 12, 2013, at approximately 4:56 p.m., § 87(2)(b) was visited by two officers at her home at § 87(2)(b) in Manhattan after a 911 call was made for harassment. The following allegations resulted:

- **Allegation A – Force: PO Jason Brown used physical force against § 87(2)(b) at § 87(2)(b) in Manhattan.**
§ 87(2)(g)
- **Allegation B – Offensive Language: PO Jason Brown made remarks to § 87(2)(b) based upon her race at § 87(2)(b) in Manhattan.**
- **Allegation C – Abuse of Authority: PO Jason Brown threatened § 87(2)(b) with the use of force at the § 87(2)(b) in Manhattan.**
§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- *A Hispanic woman who is 5'2" tall with brown eyes. § 87(2)(b) was § 87(2)(b) during the time of the incident.*

CCRB Statement (Encl. [d1-d2])

On September 18, 2013, § 87(2)(b) was interviewed at the CCRB in Spanish.

On August 12, 2013, at approximately 4:56 p.m. in the vicinity of § 87(2)(b) in Manhattan, § 87(2)(b) went upstairs to speak with § 87(2)(b), an employee for the tenants association, about an application for an apartment. After the conversation, § 87(2)(b) went back to her apartment. About two hours later, two officers knocked on her door. PO1, who was described as a tall, white man with blond hair, was identified via investigation as PO Jason Brown. PO2, who was described as a tall, white man with black hair, was identified via investigation as PO Michael Romano. The officers, who were speaking to her in English, told her she was bothering § 87(2)(b) who spoke back in English, told the officers she went to make a complaint to her but PO Brown would not let her speak when explaining. PO Brown grabbed her with his two hands, and picked her up more than twice to where her feet were still touching the ground. PO Brown then called § 87(2)(b) a “Fucking nigger,” and she replied, “Fuck you, mother fucker.”

After being placed in handcuffs, PO Brown grabbed her again. PO Romano then pushed § 87(2)(b) with his arm against the wall causing § 87(2)(b) to lose balance and fall on the floor. § 87(2)(b) did not fight back or try to hit the officers. PO Brown and PO Romano escorted her out the apartment after picking her up. While standing to the side of the elevator, § 87(2)(b) stated that PO Brown grabbed her once more. § 87(2)(b) told PO Brown, “Don’t hit me you mother fucker. Fuck you. You don’t have to hurt me,” as PO Romano told him that he

was going too far. Two Caucasian officers, identified via investigation as Sgt. Satak Alamarie and PO Michael Tansey, came out of the elevator and talked with both officers. § 87(2)(b) believes Sgt. Alamarie and PO Tansey may have seen PO Brown grabbing her next to the elevator. § 87(2)(b) presented a photo of a small bruise, which was caused by PO Brown grabbing her arms.

At the 18th Precinct stationhouse, PO Romano took § 87(2)(b) fingerprints. She called him a “Motherfucker” and told him not to touch her. PO Brown and PO3 then took her in a patrol car to § 87(2)(b) PO3, who was described as a short, thin white man with blonde hair, was identified via investigation as PO Peter Cassidy.

While at the hospital, § 87(2)(b) was released from her handcuffs and asked to sign paperwork provided to her. She refused to sign the paper and alleged that PO Brown began to push her left arm in an effort to have her sign. PO Brown then told § 87(2)(b) that if she did not sign the document, he will use force on her. While writing at the bottom of the paper that the officer pushed her to sign, PO Brown took it from her possession. A doctor and an Asian nurse were said to have been present. § 87(2)(b) was then taken back to the 18th Precinct and put in a cell by herself.

NYPD Statements

Witness Officer: PO MICHAEL ROMANO

- *PO Romano, a white man with brown hair and hazel eyes, stands 6’3” tall and weighs 195 pounds. He was § 87(2)(b) old at the time of the incident.*
- *PO Romano worked from 3 p.m. to 11:35 p.m. on August 12, 2013, and was assigned to Sector K. He was in uniform and assigned to marked vehicle #3100*

Memo Book (Encl. [e1-e4])

PO Romano had extensive entries in his memo book pertaining to § 87(2)(b) arrest.

Complaint Report and Arrest Report (Encl. [e6-e10])

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement (Encl. [e11-e12])

PO Romano was interviewed at the CCRB on November 4, 2013.

PO Romano and PO Brown responded to a call of harassment. The complainant, § 87(2)(b) § 87(2)(b) who works for the buildings board, stated § 87(2)(b) has been approaching her in a hostile the past few months by trying to coerce her to change her apartment. After PO Romano and PO Brown took the complaint report, they went to the apartment of § 87(2)(b) to hear her side of the story. The officers were outside of the hallway speaking to § 87(2)(b) While she spoke limited English, § 87(2)(b) and the officers could still understand each other.

§ 87(2)(b) was explained that § 87(2)(b) has no authority to switch her apartment and that she must stop bothering her. § 87(2)(b) screamed in Spanish and called the officers “mother fuckers.” PO Romano told § 87(2)(b) to lower her voice, and that she was not in trouble. § 87(2)(b) then kicked PO Brown in the shin on an unknown leg, while waving her arms as she was getting close to their faces. § 87(2)(b) was not punching the officers when she was waving her arms, but she did make contact with them. PO Romano and PO Brown told § 87(2)(b) to stop multiple times, and she never complied. Because he did not want the situation to escalate any further, PO Romano placed § 87(2)(b) in handcuffs as PO Brown held her arm. § 87(2)(b) was then guided down to the floor by her arms where she sat in an upright position against the wall. PO Romano made no contact with § 87(2)(b) other than her arms. While in handcuffs, § 87(2)(b) was still kicking the officers and trying to get up from the floor. PO Romano held his hand out to prevent her from doing so, and § 87(2)(b) shoulder made contact with his hand. PO Romano never called § 87(2)(b) a “fucking nigger” and never heard anyone else call her that. As she sat on the floor, § 87(2)(b) continued to scream and curse.

Sgt. Alamarie and PO Tansey arrived about ten minutes after § 87(2)(b) was placed on the ground. PO Romano explained what occurred, and how § 87(2)(b) acted. PO Romano, PO Brown, and § 87(2)(b) then went to the 18th Precinct stationhouse where she was fingerprinted and photographed by PO Romano. § 87(2)(b) mentioned to PO Romano that she suffers from polio in her right wrist. § 87(2)(b) never stated she was in pain or appeared to have any bruises, but mentioned she had discomfort in her wrist. Pictures of the § 87(2)(b) bruises were shown to PO Romano who stated that he does not recall how she obtained them. § 87(2)(b) was taken to an unknown hospital by PO Brown and PO Cassidy and later to Manhattan Central Booking.

Subject Officer: PO JASON BROWN

- *PO Brown, a white man with brown hair and blue eyes, stands 6’0” tall and weighs 220 pounds. He was § 87(2)(b) old at the time of the incident.*
- *PO Brown worked from 3:00 p.m. to 11:35 p.m. on August 12, 2013 and was assigned to Sector K and M. He was in uniform and assigned to a marked vehicle.*

Memo book (Encl. [f1-f6])

PO Brown had extensive entries in his memo book pertaining to § 87(2)(b) arrest.

CCRB Statement (Encl. [f8-f9])

PO Brown was interviewed at the CCRB on December 4, 2013. § 87(2)(g)

Once the officers brought up § 87(2)(b) name, § 87(2)(b) came outside of her apartment, screamed gibberish in PO Brown’s face causing saliva to be sprayed at him, yelled unknown obscenities, pushed him on the chest with both open hands, and kicked him in the shin. PO Brown put his arm out to keep § 87(2)(b) back, but she came forward again. After kicking PO Brown again in the shin, the officers told § 87(2)(b) she was under arrest. While being placed in handcuffs by both officers, § 87(2)(b) was fidgeting and not complying with their orders. PO Brown stated § 87(2)(b) may have been placed on the floor in the hallway but does not recall for certain. § 87(2)(b) was never pushed against the wall, and no force, other than placing § 87(2)(b) hands around her back, was used. PO Brown said neither he nor PO Romano called § 87(2)(b) a “fucking nigger” or used any profanities. § 87(2)(b) was

taken to the end of the hallway by the elevator where the officers met with a Sgt. Alamarie and PO Tansey to explain the incident, and she was then taken to the 18th Precinct stationhouse. Photos of § 87(2)(b) bruise were displayed, but PO Brown could not state how she received it.

PO Brown and PO Cassidy took § 87(2)(b) to § 87(2)(b) where she was given paper work to sign as PO Brown and PO Cassidy stood next to her. PO Brown said he never pushed § 87(2)(b) arm to have her sign any paperwork, threatened to use force on her if she did not comply, or witness any other officer commit the aforementioned claims.

Witness Officer: PETER CASSIDY

- *PO Cassidy, a white man with black hair and black eyes, stands 5'10" tall and weighs 175 pounds. He was § 87(2)(b) old at the time of the incident.*
- *PO Cassidy worked from 3 p.m. to 11:35 p.m. on August 12, 2013 and was assigned to sector North King. He was dressed in uniform and assigned to marked vehicle #4990.*

Memo Book (Encl. [g1-g4])

PO Cassidy had entries in his memo book pertaining to the transport to § 87(2)(b) (Encl. [f1-f6]).

CCRB Statement (Encl. [g5-g6])

PO Cassidy was interviewed at the CCRB on December 26, 2013.

On August 12, 2013, at approximately 8:50 p.m., PO Cassidy and PO Brown transported § 87(2)(b) to Manhattan Central Booking. Because § 87(2)(b) was deemed as a special category prisoner for an unknown cause, she was transported to § 87(2)(b) to be evaluated. A special category prisoner encompasses arrestees that are under medication, depression, or have injuries, and cannot be left with the general population of prisoners. While PO Cassidy and PO Brown were next to her, § 87(2)(b) was being attended to by a doctor and nurse. § 87(2)(b) who only spoke Spanish, was asked by a nurse to sign a paper, but she refused. The paper was meant to grant permission for the officers to speak with the doctor. § 87(2)(b) was irate, and not willing to sign the papers given to her. Whenever the nurse would attempt to talk to her, § 87(2)(b) would not respond. § 87(2)(b) requested a Spanish translation of the paperwork, and signed it after about ten minutes. PO Brown never had a conversation with § 87(2)(b) about signing the paper, threatened to use force on her if she did not, or pushed her arm in an effort to have her comply. No other officers were present and PO Brown never made any physical movements towards § 87(2)(b). The picture of the bruise on § 87(2)(b) arm was displayed, but PO Cassidy could not state how she received the injury.

NYPD Documents

911 Calls (Encl. [h1])

§ 87(2)(b) § 87(2)(b) called 911 to report § 87(2)(b) harassing and screaming at her. § 87(2)(b) § 87(2)(b) stated § 87(2)(b) is demanding the building rent her an apartment, and is accusing her of harming her son. A male called 911 to report a woman being pushed by a man causing her to cry. The male caller did not see the incident occur, and only heard it.

Sprint (Encl. [h2-h3])

At 3:56 p.m., § 87(2)(b) stated § 87(2)(b) keeps coming to her apartment, and is being harassed. An anonymous male caller stated he heard a male and female fighting, and saw the male push the female. The male caller also heard a baby crying.

Command Log (Encl. [i1])

The command log listed § 87(2)(b) physical and mental condition as apparently normal.

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings (Encl. [k11])

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of November 1, 2013 with regard to the incident, two weeks after the 90-day filing deadline.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History (Encl. [a3])

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officers CCRB History

- PO Romano has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. [a1]).
- PO Brown has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. [a2]).

Conclusion

Identification of Subject Officers

PO Romano and PO Brown acknowledged interacting with § 87(2)(b)

Allegation not pleaded

§ 87(2)(b) alleged that PO Romano pushed her against the wall to handcuff her, but she lost her balance and fell to the floor. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Force: PO Jason Brown used physical force against § 87(2)(b) at § 87(2)(b) in Manhattan.

It is undisputed that PO Brown used physical force to arrest § 87(2)(b)

§ 87(2)(b) stated PO Brown grabbed and picked her up several times by the arm. § 87(2)(b) received a small bruise from PO Brown grabbing her.

PO Romano and PO Brown said § 87(2)(b) cursed at them, got in PO Brown's face, and kicked him in the shin. PO Brown stated that § 87(2)(b) also pushed him in the chest with two open hands. § 87(2)(b) was told multiple times to stop, but she did not comply. While PO Brown held his arm out to keep § 87(2)(b) back, she came forward and kicked him in the shin again. PO Brown then grabbed § 87(2)(b) arm as PO Romano placed her in handcuffs. PO Brown stated § 87(2)(b) was fidgeting and not complying with their orders. Because § 87(2)(b) continued to kick, she was guided down to the floor and placed against a wall in an upright position. § 87(2)(b) tried to get up from the floor, but was stopped when PO Romano held his hand out. § 87(2)(b) continued to scream, curse, and kick while on the floor.

Officers must use the minimum amount of force necessary to overcome resistance to effect an arrest. Patrol Guide Procedure 203-11.

§ 87(2)(g)

[REDACTED]

Allegation B – Offensive Language: PO Jason Brown made remarks to § 87(2)(b) based upon her race at § 87(2)(b) in Manhattan.

Allegation C – Abuse of Authority: PO Jason Brown threatened § 87(2)(b) with the use of force at the § 87(2)(b) in Manhattan.

§ 87(2)(b) stated PO Brown called her a “Fucking nigger” to which she replied, “Fuck you, mother fucker.” After § 87(2)(b) was taken to the 18th Precinct stationhouse for processing, she was transported to § 87(2)(b) by PO Brown and PO Cassidy. § 87(2)(b) said that PO Brown pushed her left arm in an effort to have her sign medical documents. § 87(2)(b) refused to sign the paperwork, and was told by PO Brown that if she did not sign he would have to use force on her.

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Team: _____

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date